

**MEMORANDUM OF UNDERSTANDING BETWEEN
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE AND
THE CITY OF CHEYENNE, WYOMING**

1. **Parties.** This Memorandum of Understanding ("MOU") is made and entered into by and between Laramie County School District Number 1 ("District"), whose address is 2810 House Avenue, Cheyenne, WY 82001, and the City of Cheyenne, Wyoming, ("City") whose address is 415 W. 18th Street, Cheyenne, Wyoming 82001.
2. **Purpose.** The purpose of this MOU is to delineate the terms in which the City will provide police services to District schools within the recognized area of jurisdiction of the City, school-related events during the academic year, including summer school of each year (Academic Year), under the School Resource Officer(s) Program (SRO). The primary charge of the SRO Program is the reduction, prevention, and responsiveness to school-related violence and crime. The SRO Program creates and maintains a safe, secure, and crime-free learning environment for students, educators and the District. In addition, the SRO Program is designed to develop and enhance rapport between youth, parents, the surrounding school community, police officers, school leaders, and staff.
3. **Term of MOU.** This MOU shall commence upon the day and date last signed and executed by the duly authorized representatives of the parties to this MOU and shall remain in full force and effect until August 31, 2025. This MOU shall specifically supersede any prior MOU entered into by the Parties and in effect at the commencement of this MOU.
4. **Payment.** The District agrees to pay the City for the services described herein. Specifically, the District shall pay as follows:
 - A. All costs of salary and benefits incurred by the City in the performance of duties under this Agreement shall be paid by the City, and the District shall reimburse the City for all such costs.
 - B. Said sum shall be invoiced to the District monthly and in arrears.
5. **Responsibilities of District.**
 - A. The District agrees school requested SRO attendance at events occurring outside of normal school hours or outside the Academic Year constitute "Additional Costs."
 - B. The District agrees that SRO attendance at events occurring outside of normal school hours or outside the Academic Year are at the mutual agreement of the District and City. The District may flex an SRO's schedule to assist at such events and the flex will be taken in accordance with City Police Department Policies and Procedures.

- C. The District shall designate and provide the City with contact information for a District point of contact responsible for coordinating the SRO program. The point of contact will be the District Safety and Security Program Administrator, Phone # 307-771-2231.
- D. The District agrees to coordinate with the City and share information to the extent allowed by law.
- E. The District agrees that it is responsible for student discipline for behaviors occurring on District property or at District activities.
- F. The District acknowledges that violations of District or school policies, student discipline issues, or other matters that do not rise to the level of criminal activity remain the general purview of the District. Accordingly, student behavioral problems or similar events, unless criminal in nature or posing a threat of imminent physical danger to the student or others, will not generally result in the use of police force to restrain, detain, or otherwise restrict the activities of a student or students engaged in such activity. The District agrees that it shall not involve the SRO in school discipline matters unless school or public safety is at risk or reporting is required by law.
- G. The District agrees that the school's principal or principal's designee, absent emergency circumstances, will determine whether to involve SRO or City Police enforcement in any matter.
- H. The District agrees that SRO or City Police referrals may be made for the following:
 - (i) Assaults or battery;
 - (ii) Felony or violent criminal offenses, including but not limited to robbery, extortion, arson, or sexual assault.
 - (iii) Use or possession of dangerous weapons by a student, including but not limited to knives, guns, and explosive devices;
 - (iv) Sale, possession, or use of illegal drugs, tobacco/nicotine product, or alcohol;
 - (v) Threats of physical harm to school employees or the public; and
 - (vi) Destruction, damage, and vandalism of District property.
- I. The District agrees that the SRO shall comply with City Police Department Policies and Procedures; where City police policies conflict with District Policies

and Procedures, SRO shall defer to the City Police Department Policies and Procedures.

- J. Except in emergency, urgent or preliminary public safety inquiry circumstances, SROs shall follow these conditions for interviewing or searching students suspected of criminal activity:
- (i) SROs may question a student about subjects that may result in or identify a crime, threat or concern utilizing the following process. Unless an emergency or urgent circumstance exists, any law enforcement officer (LEO) desiring to question a student at school must notify the school principal or the principal's designee in advance so that permission for questioning may be obtained from a parent or guardian of the child.
 - (ii) Once notified that a parent or guardian asks that the student not be questioned until he/she or his/her designee arrives, the principal will advise the LEO and ask that the officer wait to question the student until the parent or guardian arrives.
 - (iii) If the parent or guardian cannot be reached, the student may be questioned by the officer with the principal or the principal's designee present. The principal or his/her designee must be present when any law enforcement interview of a child is conducted on school property.
 - (iv) Pursuant to Wyoming Statute § 14-6-206(c), after issuing any citation to a child for a violation of a state or federal law or a municipal ordinance for which incarceration or a fine may be imposed, the law enforcement agency issuing the citation, or its designee shall take reasonable actions to notify the child's parent, guardian, or custodian. SROs will only be responsible for issuing citations related to violations of law, not violations of school or district rules or policies.
 - (v) If the parent or guardian is the subject of a potential abuse or neglect allegation, neither the LEO nor the Department of Family Services (DFS) is required to, nor may the principal or his/her designee, notify the parent or guardian prior to a LEO and/or DFS questioning the child. In such circumstances, the LEO and/or DFS representative shall question the student with the principal or his/her designee present.
 - (vi) If there are exigent or urgent circumstances that prevent prior parental notification.
 - a) Parent or guardian shall be notified as soon as reasonably possible.

- b) School personnel will serve '*in loco parentis*' (in place of a parent or guardian).
 - (vii) Absent exigent or urgent circumstances, a principal or designee shall be consulted before the SRO conducts questioning of a student or searches student's person, possessions, or locker to allow time to express any concerns about reasonableness and to notify parent or guardian.
 - (viii) When there is a probable cause to believe the student has committed or is committing a felony offense or the offense at issue poses a threat of serious and immediate injury, the SRO may conduct questioning or search at school without notice to school personnel, parent, or guardian.
 - (ix) SROs may not request that school officials conduct a search of the student's person, possessions, or locker to evade the probable cause standard required of law enforcement.
 - (x) Nothing herein shall prevent the SRO from engaging students in casual conversation about subjects other than inquiries related to suspected criminal activity.
- K. The District agrees that SRO audio and/or video recordings constitute "peace officer recordings" under the Wyoming Public Records Act. Wyoming Statute § 16-4-201(xi). As such, SRO peace officer recordings are the sole property of the City and may not be released except as permitted by law.
- L. The District will timely notify the SRO or the City Police of any student with disabilities that require specialized treatment or accommodation regarding any matter referred to the SRO by the District.
- M. The District shall provide each SRO with private and secure office space at the appropriate school with access to technological support.
- N. The District may provide SRO access to all security camera systems.
- O. The District shall provide each SRO limited access to the District's Infinite Campus system to include student name, address, parent, or guardian contact information, in accordance with local, state, and federal law. The SROs will be required to complete annual Family Educational Rights and Privacy Act (FERPA) training. The training will be required prior to or at the beginning of the new school year and will be provided by the District at no cost to the City. The District will maintain the SRO's training records depicting the FERPA training was completed. The SRO will not include any information from Infinite Campus in any report or formal record of a law enforcement investigation.
- P. The District shall provide the SRO access to all school facilities for the purposes of official duties.

- Q. The District understands and agrees the SRO may be immediately recalled for public emergencies. The parties agree that SRO recall for public emergencies is not a material breach of this MOU and there is no penalty to the City.

6. **Responsibilities of the City.**

- A. The City agrees to provide the District with Seven (7) SROs and one SRO Supervisor for the 2024-2025 Academic Year. The supervisor's responsibilities will be to manage and coordinate the City's performance under this Agreement.
- B. The City agrees that SRO duties are to respond to and investigate criminal acts on District property and/or at District events during normal school hours, or as otherwise agreed to, during the Academic Year.
- C. The City agrees that the SRO may initiate appropriate law enforcement actions to address criminal matters, including matters that threaten the safety and security of the school or its occupants, and/or intervene with staff or students when necessary to ensure the immediate safety of persons in the school environment in light of an actual or imminent threat to health or safety. Any such intervention shall be reasonably calculated to protect the physical safety of members within the school community, while minimizing, to the extent possible, any unintended negative effects on students. All law enforcement actions and interventions to protect the safety of others shall be consistent with all applicable laws, regulations, and policies.
- D. The City agrees that except for felony offenses or criminal offenses that constitute a threat to the safety of the school or public ("Serious Offenses"), the SRO will notify and consult with the school principal or his designee prior to questioning a student.
- E. The City agrees that except for Serious Offenses, the SRO will delay questioning a student until the parent or guardian arrives.
- F. The City agrees that except for Serious Offenses, the school principals or their designees shall be present for student interviews and searches on District property.
- G. The City will take reasonable action to notify the parent or guardian of any student issued a citation. *See* Wyoming Statute § 14-6-206(c).
- H. The City agrees that the SROs may not request that school officials conduct a search of the student's person, possessions, or locker to avoid probable cause standards.
- I. The City agrees that SRO may provide educational support, when applicable, for in-service training for school staff and students on emergency preparedness,

crisis intervention, crime trends, law enforcement policies and intervention methods.

- J. The City agrees that the school may request assistance of an SRO to conduct a search of a student's person, possessions, or locker on behalf of the school when the school has a reasonable suspicion of a violation of school policy or law by the student. Any search will be conducted at the sole discretion of the SRO.
- K. The City understands that school district records and video may be protected as confidential by federal and state laws and that such records cannot be accessed without a warrant or other court order or without consent of the individual legally authorized to give consent. If SROs require access to records, documents, or other school district information, whether in hard copy, electronic, cloud-based, or any other format, they will work with District personnel to lawfully obtain such information.
- L. The City agrees to provide a replacement officer if the assigned SRO will be absent for ten (10) or more consecutive school days. The officer will cover the SRO's duty assignment at the actual cost of the replacement officer. Further, the district shall not be billed for periods when individual SROs are absent from their assigned duties/school(s), to include periods of professional training for collateral duty. The SRO is encouraged, when possible, to take personal leave during scheduled school breaks.

7. **Special Provisions.**

- A. SROs will be selected by means of a joint selection committee, comprised of representatives from the District who will be appointed by the Superintendent of schools and representatives from the City appointed by the Chief of Police. The committee will make recommendations to the Chief of Police; however, final selection of SRO is at the sole discretion of the City.
- B. SRO Training specific to law enforcement duties shall be provided and paid for by the City. Training for SRO in areas that are specific to juvenile crimes and SRO duties may be provided by the City and District. The District will provide overview and familiarization with District techniques and procedures to SROs as necessary and with content relevant to SRO duties. The District's Safety and Security Program Administrator will coordinate dates and times of this training with the SRO's supervisor. Training requests will be made to the SRO's supervisor and the Superintendent of Schools or the District's Safety and Security Program Administrator.
- C. At least sixty (60) days prior to the expiration of this MOU, the City and the District will jointly evaluate the SRO program.

- D. The City will evaluate the effectiveness of each SRO. The City shall seek input from the District for each evaluation.
- E. SROs assigned to provide services under this Agreement shall, at all times, be employees of the City. The City shall comply with all federal, state, and local laws and ordinances regarding the employment relationship between the City and SROs assigned to provide services under this Agreement.
- F. Long Term Official School Closure: Should any non-weather-related event require long-term official closure of school locations for more than five (5) consecutive school days, the District may request limited law enforcement services with the balance of SRO's daily hours redirected to supervise schools and/or released back to the City as best represent the interests of both the City and the District. If such interests cannot be agreed upon, this MOU shall be suspended for the remainder of the period of the official closure, and payments vacated for duties not performed during such period.

8. **General Provisions**

- A. **Amendments.** Either party may request changes to this MOU. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the parties to this MOU shall be incorporated by written instrument, executed, and signed by all parties to this MOU.
- B. **Applicable Law.** The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.
- C. **Availability of Funds.** Each payment obligation of either party is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, the MOU may be terminated by either party at the end of the period for which the funds are available. Each party shall notify the other party at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to either party in the event this provision is exercised, and neither party shall be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit either party to terminate this MOU to acquire similar services from another entity.
- D. **Entirety of Agreement.** This MOU, consisting of nine (9) pages, and Attachment A, Salary and Equipment Costs consisting of (1) page represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

- E. **Governmental Immunity.** Neither party waives governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it pursuant to Wyoming Statute §§ 1-39-101 through -120 and all other applicable law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity. The parties agree that any ambiguity in this MOU shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental immunity shall be construed in favor of governmental immunity.
- F. **Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- G. **Independent Contractor.** Nothing in this MOU shall be interpreted as authorizing either party or its agents and/or employees to act as an agent or representative for or on behalf of the other party or to incur any obligation of any kind on the behalf of the other party.
- H. **Severability.** Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- I. **Termination of MOU.** This MOU may be terminated, without cause, by the either party upon thirty (30) days written notice. This MOU may be terminated immediately for cause if the City or District fails to perform in accordance with the terms of this MOU.
- J. **Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the parties to this MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU.
- K. **Titles Not Controlling.** Titles of paragraphs are for reference only and shall not be used to construe the language in this MOU.
- L. **Waiver.** The waiver of any breach of any term or condition in this MOU shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.

9. **Signatures.** The parties to this MOU through their duly authorized representatives have executed this MOU on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The effective date of this MOU is the date of the signature last affixed to this page.

CITY OF CHEYENNE

Patrick Collins, Mayor

Date

(S E A L)

ATTEST:

Kristina Jones, City Clerk

DISTRICT

Tim Bolin, Board Chair
Laramie County School District #1

Date

LARAMIE COUNTY SCHOOL DISTRICT NUMBER 1 APPROVAL AS TO FORM

Amy A. Pauli

Date

ATTACHMENT A
SALARY COSTS

*** (SUBJECT TO ACTUAL, ANNUAL, INCREMENTAL CHANGES OF SALARY
AND BENEFITS PERSONNEL EXPENSES) 2024-2025 School-Year:**

1. The District will pay the City annually for the use of seven (7) SROs and one (1) SRO Supervisor.

- a. The District is responsible for paying seventy percent (75%) of the combined estimated annual salary and benefits of each of the seven (7) SROs and one (1) SRO Supervisor. The estimated annual salary and benefits for each of the seven SROs and one (1) SRO Supervisor is Six hundred and fifty thousand, five hundred and fifty-two dollars (\$650,555), plus any overtime.